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Case Number: 25STCV10231 Hearing Date: September 2, 2026 Dept: 510

No.

4 – Emmanuel Marin Medina v. Flor Villas LLC, et al.

Plaintiff

Emmanuel Marin Medina's Twenty Motions for Orders Deeming Requests for Admission Admitted and Compelling Responses to Requests for Admission, Form Interrogatories, Special Interrogatories, and Requests for Production

Plaintiff

Emmanuel Marin Medina moves for several orders: (1) four orders deeming that each of the four Defendants has admitted the truth of the matters specified in Plaintiff's requests for admission, and (2) sixteen orders compelling each Defendant to provide initial discovery responses to requests for admission, form interrogatories, special interrogatories, and requests for production.

Plaintiff

filed the following discovery motions.

1. Motion

to Deem Requests for Admission Admitted (Defendant Flor Villas LLC)

2. Motion

to Deem Requests for Admission Admitted (Defendant Flor 401 Lofts LP)

3. Motion

to Deem Requests for Admission Admitted (Defendant Beachfront Property Management, Inc.)

4. Motion

to Deem Requests for Admission Admitted (Defendant Path Ventures)

5. Motion

to Compel Initial Responses to Requests for Admission (Defendant Flor Villas LLC)

6. Motion

to Compel Initial Responses to Requests for Admission (Defendant Flor 401 Lofts LP)

7. Motion

to Compel Initial Responses to Requests for Admission (Defendant Beachfront Property Management, Inc.)

8. Motion

to Compel Initial Responses to Requests for Admission (Defendant Path Ventures)

9. Motion

to Compel Initial Responses to Form Interrogatories (Defendant Flor Villas LLC)

10. Motion

to Compel Initial Responses to Form Interrogatories (Defendant Flor 401 Lofts LP)

11. Motion

to Compel Initial Responses to Form Interrogatories (Defendant Beachfront Property Management, Inc.)

12. Motion

to Compel Initial Responses to Form Interrogatories (Defendant Path Ventures)

13. Motion

to Compel Initial Responses to Special Interrogatories (Defendant Flor Villas LLC)

14. Motion

to Compel Initial Responses to Special Interrogatories (Defendant Flor 401 Lofts LP)

15. Motion

to Compel Initial Responses to Special Interrogatories (Defendant Beachfront Property Management, Inc.)

16. Motion

to Compel Initial Responses to Special Interrogatories (Defendant Path Ventures)

17. Motion

to Compel Initial Responses to Requests for Production (Defendant Flor Villas LLC)

18. Motion

to Compel Initial Responses to Requests for Production (Defendant Flor 401 Lofts LP)

19. Motion

to Compel Initial Responses to Requests for Production (Defendant Beachfront Property Management, Inc.)

20. Motion

to Compel Initial Responses to Requests for Production (Defendant Path Ventures)

Requests
for Admission

As

an initial matter, a party cannot move to compel the opposing party to provide initial responses to requests for admission. The proper motion under the Code is to move for “an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted.” (Code Civ. Proc., § 2033.280(b).) Because Plaintiff has no statutory basis to bring his four motions to compel initial responses to requests for admission (identified at numbers 5-8 above), these motions will be denied.

However,

Plaintiff’s four motions to deem requests for admissions admitted are proper. When a party fails to serve a timely response to requests for admission, “[t]he requesting party may move for an

order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction.” (Code Civ. Proc., § 2033.280(b).)

Defendants failed to serve timely responses to Plaintiff’s discovery requests. Plaintiff served all his initial discovery requests on July 17, 2025. (Giragossian Decls., ¶ 4.) As of the date these motions were filed, Defendants had still not served responses. (Id., ¶ 11.) Plaintiff is therefore entitled to an order deeming admitted the matters specified in his requests for admission.

Interrogatories
and Requests for Production

A party must respond to written discovery “[w]ithin 30 days after service.” (Code Civ. Proc., §§ 2030.260(a) [interrogatories], 2031.260(a) [requests for production].) When the responding party fails to serve a timely response to interrogatories or requests for production, the requesting party may move for an order compelling responses. (Code Civ. Proc., §§ 2030.290(b) [interrogatories], 2031.300(b) [requests for production].) Failing to serve a timely response results in waiving any objections. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a).)

As discussed above, Defendants failed to serve responses to any of Plaintiff’s discovery requests. Plaintiff is therefore entitled to orders compelling Defendants to respond to written discovery.

Sanctions

Plaintiff also requests monetary sanctions against Defendants. The Court cannot award sanctions for the motions to compel discovery responses. “A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (CCP § 2023.040.)

Here,

Plaintiff did not include his request for sanctions in the notice of motion in any of the twelve successful motions to compel. Without this, Defendants have not received adequate notice of the sanctions sought against them, in violation of due process.

However,

the Court will award sanctions sought in the four motions to deem requests for admission admitted, because the sanctions request is included in the notice of motion. "It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280(c).)

For

the four motions to deem requests for admission admitted, Plaintiff requests a total of \$5,102.80 in sanctions. This includes 3 hours for motion preparation, 2 hours for anticipated review of an opposition and drafting a reply brief, and 4 hours for attending the hearing at a rate of \$650 per hour. The Court exercises its discretion to not award fees for reviewing an opposition or preparing a reply brief. No opposition was filed, thus no reply brief was necessary. The Court will also reduce the hours requested for attending the hearing to 1 hour. Therefore, the Court will award Plaintiff 4 hours of fees at a rate of \$650 per hour. This totals \$2,600. The Court will also award the \$338.80 in filing costs.

Disposition

Plaintiff

Emmanuel Marin Medina's motions to compel responses to form interrogatories, special interrogatories, and requests for production are granted.

Defendants Flor Villas LLC, Flor 401 Lofts LP, Beachfront Property Management, and Path Ventures are ordered to serve verified responses without objections within 10 days.

Plaintiff

Emmanuel Marin Medina's motions to deem matters admitted are granted.

Plaintiff's request for admissions as to Defendants Flor Villas LLC, Flor 401 Lofts LP, Beachfront Property Management, and Path Ventures are hereby deemed admitted.

Plaintiff

Emmanuel Marin Medina's motions to compel responses to requests for admission are denied.

Defendants

Flor Villas LLC, Flor 401 Lofts LP, Beachfront Property Management, and Path Ventures and their counsel of record are ordered to pay, jointly and separately, Plaintiff Emmanuel Marin Medina \$2,938.80 in sanctions within 21 days.